

“Fancy Franchises”: The Mid-Victorian Quest for Electoral Non-Uniformity

Better a few rotten (sic) boroughs, and a few anomalies, than a system of universal suffrage and electoral districts, which might substitute anarchy for liberty, and nurse the young giant of a future despotism.

Illustrated London News

We must choose between anomaly and democracy. There is no third alternative.

Economist

The Representation of the People Act of 1867, second in a series of such measures, was both a “leap in the dark” and the defining British parliamentary reform legislation of the nineteenth century. It more than doubled the size of the English and Welsh borough electorate and charted the democratic course if not the known consequences of present and future constitutional revision.ⁱ In so doing, it rendered continuation of the concurrent quest for off-setting electoral non-uniformity pointless and curiosity about the unsuccessful, mid-Victorian promotion of representational inequality passé. Historians have shown only passing interest in this campaign that encompassed a multitude of proposals to delay, avert, or modify the onset of popular government by means of novel, diverse, and anomalous franchises, constituencies, and voting procedures. The absence of fuller scholarly consideration has served to trivialize its role within the second parliamentary reform movement and to convey impressions of its inevitable failure. Historical depictions have and continue to be infrequent, brief, and confined mostly to the so-called “fancy franchise” provisions offered in some of its component schemes. They add little if anything either to an understanding of the campaign for non-uniform representation or its contribution to the evolving constitutional and reformist discourse of the mid-Victorian era. A good deal remains unknown and is in increasing danger of being permanently overlooked, ignored, or forgotten. Persistent misconceptions have arisen about the bipartisan origins and attraction of some of its proposals. In some instances, even information provided by authoritative scholars has been either unreliable or misleading. No one has attempted to delineate the contours of this quest or to analyze its competing aims and rationales. Secondary sources fail, moreover, to convey an understanding of the second reform movement as participants were likely to have perceived it: A lively, many-sided, intellectual free-for-all of rival schemes and uncertain outcome in which the proponents of non-uniformity played an important part.

Contemporary sources, largely untapped, provide a needed corrective to the prevailing historical narrative that understates the importance of this quest and its possibilities of success. The evidence there of broad support among important segments of the British governing classes for an anomalous, non-uniform system of representation is too compelling to be so readily dismissed. Its proponents included prominent politicians, influential intellectuals, constitutional theorists, journalists, and public figures of all but the most radical political persuasions. Advocates repeatedly formulated, publicized, and endorsed such offerings in treatises, pamphlets, speeches, parliamentary bills and debate, newspaper leaders, letters to editors, and opinion pieces in the foremost periodicals of the era.

Portions of such schemes formed a part of nearly every official mid-Victorian, reform proposal and in provisions of lesser significance within the second Reform Act itself. The time has come for a thorough reappraisal of the quest for non-uniform parliamentary representation.

The first Reform Act temporarily quieted the demand among members of the enlarged electorate and Parliament alike for further expansion of the right to vote. It did not, however, extinguish the sense of injustice among those portions of the working classes whose desire for representation had been denied. Even as successive Whig and Tory governments redirected their legislative attention to fiscal, administrative, municipal, social, economic and Irish matters, politically active segments of the urban working classes continued to press for more sweeping electoral changes. These efforts found intermittent support only among empathetic minorities within the House of Commons and the existing middle-class electorate. They varied in intensity with fluctuating economic conditions and were undermined by divided leadership and competing methods. They made no appreciable headway, at least until after the splintering of the Conservative party following repeal of the Corn Laws.

Precisely when a renewed, broader interest in reform of the representational system began to take hold is a matter of interpretation. Francis H. Herrick, whose sketch of the anomalous provisions and non-uniformities offered in his interpretive survey of the mid-Victorian campaign for parliamentary reform has yet to be superseded, took 1850 to mark the start of a full-fledged second reform movement. It was only then, he believed, that the British governing classes had begun to give further electoral change serious consideration. Contemporary sources, however, do reveal proposals of varying intent that date from the period between repeal of the Corn Laws in 1846 and the implosion of physical-force Chartism two years later. There is referential evidence of even earlier public discussion of similar innovations.ⁱⁱ

As residual attempts to restore agricultural protection gradually faltered during the late 1840s, questions of parliamentary representation drew increasing attention. Renewed working-class agitation helped revitalize the issue, less from widespread public fears of imminent Chartist violence than from growing doubts as to the viability of the reform settlement. Perceptive individuals had begun to recognize the inevitability of further constitutional amendment and to anticipate the likely popular projectile of such legislation unless they could preempt its launching and alter its trajectory with proposals of their own. Once these opponents of radical measures began to publicize their schemes, the call for reform acquired a new dimension and a broader appeal. Their proposals made the idea of parliamentary reform palatable, even attractive to many who had been resistant to another round of leftward organic change. Those who had been unresponsive to calls for radical alteration of the constitution for nearly a generation now had competing schemes of Whig/liberal and Tory/conservative origin to consider. Although not necessarily anti-democratic in design, these plans were intended, with scarcely an exception, to serve anti-populist objectives. They were to range in purpose from those meant to undercut demands for far-reaching franchise extension with suffrage alterations of a limited kind, to those that sought to prevent the possibility of numbers "swamping" other vital national interests under any future system of parliamentary representation. All who joined in this mid-Victorian discourse were active participants in the second parliamentary reform movement.

For all its ground-breaking significance, most historians no longer consider the Reform Act of 1832 to have been quite as "great" as it once was thought to be. It now appears to have been no more or less than "the most that parliament would grudgingly tolerate and the least that the people would be prepared to accept."ⁱⁱⁱ The nature of the Act permitted some to confidently predict its permanence

and others to be left hopeful, fearful or uncertain as to where it might lead. The Whigs had intended their legislation to mitigate the most objectionable anomalies and corrupt electoral practices that

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ⁱ First, As in 1832 when the Whigs carried the first Reform Act for England and Wales before securing enactment of separate measures for Scotland and Ireland, the Conservative Reform Act of 1867 pertained only to representation in England and Wales. It too was ratified apart from and prior to separate reform offerings introduced in 1868 for Scotland and Ireland.

ⁱⁱ Second, [John Lettsom Elliot], *A Letter to the Electors of Westminster, From a Conservative*, 2nd ed. (London, 1847); Francis W. Newman, *An Appeal to the Middle Classes on the Urgent Necessity of Numerous Radical Reforms, Financial and Organic* (London, 1848); "Loose Leaves from the Note-Book of a Schemer," parts 1 and 2, *Fraser's Magazine* 39 (Jan. and Feb. 1849): 28-35, 179-188.

ⁱⁱⁱ Third, David Cannadine, *Victorious Century: The United Kingdom, 1800-1906* (New York, 2017), 161.